

Disclaimer: *In view of the European Commission's transparency policy, the Commission is publishing the texts of its Comprehensive Economic Partnership Agreement with Indonesia following the Ministerial announcement on 23 September 2025. These texts are published for information purposes only and may undergo further modifications including as a result of the process of legal revision. These texts are without prejudice to the outcome of the Agreement between the EU and Indonesia. The texts will be final upon signature. The Agreement will become binding on the Parties under international law only after completion by each Party of its internal legal procedures necessary for the entry into force of the Agreement.*

CHAPTER 4

CUSTOMS AND TRADE FACILITATION

Article 4.1

Objectives

1. The Parties recognise the importance of customs and trade facilitation matters in the evolving global trading environment. The Parties shall reinforce cooperation in this area with a view to ensuring that the relevant legislation and procedures, as well as the administrative capacity of the customs administrations, fulfil the objectives of promoting trade facilitation while ensuring effective customs controls. This may involve the following actions:
 - (a) ensuring predictability, consistency and transparency in the application of customs laws and regulations of the Parties;
 - (b) promoting efficient administration of customs procedures, and the expeditious clearance of goods;
 - (c) simplifying customs procedures of the Parties and harmonise them to the extent possible with relevant international standards; and
 - (d) promoting co-operation between the customs authorities of the Parties.
2. To this end, the Parties agree that the application of their customs laws and regulations shall be non-discriminatory and that customs procedures shall be based upon the use of efficient methods and effective controls to combat fraud and to promote legitimate trade.
3. The Parties recognise that legitimate public policy objectives, including in relation to security, safety and fight against fraud shall not be compromised in any way.

Article 4.2

Scope

This Chapter shall apply to matters relating to the Parties’ customs and other trade-related laws and regulations enforced by customs authorities, including their application to goods traded between the Parties, as well as to cooperation between the Parties.

Article 4.3

Definitions

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For the purposes of this Chapter:

- (a) “customs authority” means the authorities that are responsible under the legislation of each Party for the administration and enforcement of its customs laws and regulations. In the European Union, this definition includes the services of the European Commission responsible for customs matters.
- (b) "customs legislation" means any laws and regulations, applicable in the territory of either Party, governing the import, export and transit of goods and placing the goods under any other customs procedures; and
- (c) "customs territory" means:
 - in the European Union: the customs territory as referred to in Article 4 of Regulation (EU) No 952/2013 of the European Parliament and of the Council of 9 October 2013, laying down the Union Customs Code; and
 - in Indonesia: the territory of the Republic of Indonesia as defined by customs legislation.

Article 4.4

Customs cooperation and mutual administrative assistance

1. The Parties shall cooperate on customs matters between their respective authorities, as deemed appropriate, in order to ensure that the objectives set out in Article 4.1 (Objectives) are attained.
2. The Parties agree to develop cooperation on customs matters including, inter alia:
 - (a) exchanging information concerning customs legislation, its implementation, and customs procedures, particularly in the following areas:
 - (i) simplification and modernisation of customs procedures;
 - (ii) enforcement by the customs authorities of intellectual property rights, and the fight against illicit trade;
 - (iii) facilitation of transit movements and transshipment;
 - (iv) relations with the business community; and
 - (v) supply chain security and risk management.
 - (b) working together on the customs-related aspects of securing and facilitating the international trade supply chain in accordance with the relevant best practices, standards and techniques, in particular those developed by the World Customs Organization (hereinafter referred to as “WCO”) insofar as they have been ratified or adopted by the Parties;
 - (c) considering developing initiatives on best practices and techniques relating to customs matters including technical assistance, efforts towards the simplification and harmonisation of customs procedures, as well as providing effective service to the business community;

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- (d) developing cooperation in areas of mutual interest in the field of customs in international organisations such as the WTO” and the WCO;
 - (e) establishing, where relevant and appropriate, mutual recognition of trade partnership programmes and customs controls including equivalent trade facilitation measures;
 - (f) exchanging, where relevant and appropriate, through a structured and recurrent communication between the customs authorities of the Parties, certain categories of customs-related information for specific purposes, namely improving risk management and the effectiveness of customs controls, targeting goods at risk in terms of revenue collection or safety and security, and facilitating legitimate trade; such exchange shall be without prejudice to exchanges of information that may take place between the Parties pursuant to the Protocol on Mutual Administrative Assistance in Customs Matters;
 - (g) fostering, where relevant and appropriate, cooperation between customs and other government authorities or agencies in relation to authorised operator programmes. This collaboration may be achieved, inter alia, by aligning requirements, facilitating access to benefits and minimising unnecessary duplication and
 - (h) other relevant issues as the Parties may mutually determine.
3. The Parties shall provide each other with mutual administrative assistance in customs matters in accordance with the provisions of the Protocol on Mutual Administrative Assistance in Customs Matters .

Article 4.5

Customs provisions and procedures

1. Each Party shall ensure that its customs provisions, procedures and their implementation are predictable, consistent, transparent, facilitate trade while ensuring effective controls, and are based upon:
 - (a) international instruments and standards applicable in the area of customs and trade facilitation, notably those concluded in the context of the WTO and theWCO, and conform, where possible and to the extent permitted by its customs laws and regulations, with the recommended practices of the WCO;
 - (b) legislation that is proportionate and non-discriminatory, avoids unnecessary burdens on economic operators, provides for further facilitation for operators with high levels of compliance, including favourable treatment with respect to customs controls prior to the release of goods, and ensures safeguards against fraud and illicit or damageable activities; and
 - (c) rules that ensure that any penalty imposed for breaches of customs regulations or procedural requirements is proportionate and non-discriminatory and that their application shall not unduly delay the release of the goods;
2. Each Party should periodically review its legislation and customs procedures with a view to their simplification to facilitate trade and ensure effective controls.

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3. In order to improve working methods, as well as to ensure non-discrimination, transparency, efficiency, integrity and accountability of operations, each Party shall:

- (a) simplify and review requirements and formalities wherever possible with a view to the rapid release and clearance of goods; and
- (b) work towards the further simplification and standardisation of data and documentation required by customs and other agencies.

Article 4.6

Release of goods

1. Each Party shall adopt or maintain customs procedures that provide for goods to be released as rapidly as possible within a period that is no longer than necessary to ensure compliance with its laws and regulations. Each Party shall work to further reduce release times and release the goods without undue delay. Situations in which it may not be possible to verify compliance may include the following:

- (a) the importer fails to provide any of the information required by the importing Party at the time of first entry;
- (b) the information contains an error;
- (c) the goods are selected for closer examination by the authorities of the importing Party through the application of risk management; or
- (d) the necessary customs formalities could not be completed or release is otherwise delayed by virtue of force majeure.

If any goods are selected for closer examination in accordance with point (c), it shall be limited to what is reasonable and necessary, and undertaken and completed without undue delay.

2 Each Party shall provide for advance submission and processing of the documentation and any other required information prior to the arrival of the goods to enable the release of goods on arrival and provided that the conditions are fulfilled.

3. Each Party shall adopt or maintain procedures allowing the release of goods prior to the final determination of the applicable customs duties, taxes, fees and charges, if such determination is not done prior to, or upon arrival or as rapidly as possible after arrival and provided that all other regulatory requirements have been met. As a condition for such release, each Party may require a guarantee for any amount not yet determined in the form of a surety, a deposit or another appropriate instrument provided for in its laws and regulations. Such guarantee shall not be greater than the amount the Party requires to ensure payment of customs duties, taxes, fees and charges ultimately due for the goods covered by the guarantee. The guarantee shall be discharged when it is no longer required.

Article 4.7

Simplified customs procedures

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Each Party shall provide for simplified customs procedures that are transparent and efficient in order to reduce costs and increase predictability for economic operators, including for small and medium-sized enterprises.

Article 4.8

Transit and transshipment

1. Each Party shall ensure the facilitation and effective control of transshipment operations and transit movements through their respective territories.
2. Each Party shall promote and implement regional transit arrangements with a view to facilitating trade.
3. Each Party shall ensure cooperation and coordination between all concerned authorities and agencies in their respective territories to facilitate traffic in transit.
4. Each Party shall allow goods intended for import to be moved within its territory under customs control from a customs office of entry to another customs office in its territory from where the goods would be released or cleared.

Article 4.9

Risk management

1. Each Party shall adopt or maintain a risk management system for customs control.
2. Each Party shall design and apply risk management in a manner as to avoid arbitrary or unjustifiable discrimination, or disguised restrictions to international trade.
3. Each Party shall concentrate customs control and, to the extent possible other relevant border controls, on high-risk consignments and expedite the release of low-risk consignments. Each Party may also select, on a random basis, consignments for such controls as part of its risk management.
4. Each Party shall base risk management on assessment of risk through appropriate selectivity criteria.

Article 4.10

Post-clearance audit

1. With a view to expediting the release of goods, each Party shall adopt or maintain post-clearance audit to ensure compliance with customs and other related laws and regulations.
2. Each Party shall select a person or a consignment for post-clearance audit in a risk-based manner, which may include appropriate selectivity criteria. Each Party shall conduct post-clearance audits in a transparent manner. Where the person is involved in the audit process and conclusive results have been

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achieved the Party shall, without delay, notify the person whose record is audited of the results, the person's rights and obligations and the reasons for the results.

3. The Parties acknowledge that the information obtained in post-clearance audit may be used in further administrative or judicial proceedings.
4. The Parties shall, wherever practicable, use the result of post-clearance audit in applying risk management.

Article 4.11

Authorised operators

1. Each Party shall provide additional trade facilitation measures related to import, export or transit formalities and procedures, pursuant to paragraph 3 of this Article, to operators who meet specified criteria, hereinafter referred to as authorised operators. Alternatively, a Party may offer such trade facilitation measures through customs procedures generally available to all operators and in that case shall not be required to establish a separate scheme.
2. The specified criteria to qualify as an authorised operator shall be related to compliance, or the risk of non-compliance, with requirements specified in the Parties' laws, regulations or procedures. The specified criteria, which shall be published, may include:
 - a) an appropriate record of compliance with customs and other related laws and regulations;
 - b) a system of managing records to allow for necessary internal controls;
 - c) financial solvency, including, where appropriate, provision of a sufficient security or guarantee; and
 - d) supply chain security.
3. The specified criteria to qualify as an authorised operator shall not be designed or applied so as to afford or create arbitrary or unjustifiable discrimination between operators where the same conditions prevail and, to the extent possible, shall allow the participation of small and medium-sized enterprises.
4. The trade facilitation measures provided pursuant to paragraph 1 of this Article shall include at least three of the following measures:
 - (a) low documentary and data requirements, as appropriate;
 - (b) low rate of physical inspections and examinations, as appropriate;
 - (c) rapid release time, as appropriate;
 - (d) deferred payment of duties, taxes, fees, and charges;
 - (e) use of comprehensive guarantees or reduced guarantees;
 - (f) a single customs declaration for all imports or exports in a given period; and

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- (g) clearance of goods at the premises of the authorized operator or another place authorized by customs;
 - (h) prior notification in case of selection for physical or other customs control; or
 - (i) priority treatment if selected for control.
5. The Parties are encouraged to develop authorised operator schemes on the basis of international standards, where such standards exist, except when such standards would be an inappropriate or ineffective means for the fulfilment of the legitimate objectives pursued.

Article 4.12

Publication and availability of information

1. Each Party shall promptly publish the following information in a non-discriminatory and easily accessible manner:
 - (a) relevant notices of an administrative nature;
 - (b) importation, exportation and transit procedures (including port, airport, and other entry-point procedures) and required forms and documents;
 - (c) applied rates of duties and taxes of any kind imposed on or in connection with importation or exportation;
 - (d) fees and charges imposed by or for governmental agencies on or in connection with importation, exportation or transit;
 - (e) rules for the classification or valuation of products for customs purposes;
 - (f) laws, regulations and administrative rulings of general application relating to rules of origin;
 - (g) import, export or transit restrictions or prohibitions;
 - (h) penalty provisions against breaches of import, export or transit formalities;
 - (i) appeal procedures;
 - (j) agreements or parts thereof with any country or countries relating to importation, exportation or transit;
 - (k) procedures relating to the administration of tariff quotas; and
 - (l) hours of operation and operating procedures for customs offices at ports and border crossing points.
2. Each Party shall, to the extent possible, ensure there is a reasonable time period between the publication of new or amended legislation, procedures and fees or charges and their entry into force.

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3. Each Party shall make available, and update to the extent possible and as appropriate, the following through the internet:
 - (a) a description of its importation, exportation and transit procedures, including appeal procedures, informing of the practical steps needed to import and export, and for transit;
 - (b) the forms and documents required for importation into, exportation from, or transit through the territory of that Party; and
 - (c) contact information on enquiry points.

Article 4.13

Enquiry points

Each Party shall within its available resources, establish or maintain one or more enquiry points to answer, within a reasonable time, reasonable enquiries of governments, traders and other interested parties on customs and other trade-related matters. A Party shall not require the payment of a fee for answering enquiries.

Article 4.14

Advance rulings

1. Each Party, through its customs authorities, shall issue advance rulings upon application by economic operators setting forth the treatment to be accorded to the goods concerned. Such rulings shall be issued in writing or in electronic format in a time bound manner and shall contain all necessary information in accordance with the laws and regulations of the issuing Party.
2. Advance rulings shall be valid for a period of at least three years from the start date of its validity or such other period as specified in its laws and regulations of the issuing Party unless the decision in the ruling no longer conforms to the law or the facts or circumstances supporting the original ruling have changed.
3. A Party may refuse to issue an advance ruling if the question raised in the application is the subject of an administrative or judicial review, or if the application does not relate to any intended use of the advance ruling or any intended use of a customs procedure. If a Party declines to issue an advance ruling, it shall notify the applicant in writing, setting out the relevant facts and the basis for its decision.
4. Each Party shall publish, at least:
 - (a) the requirements for the application for an advance ruling, including the information to be provided and the format;
 - (b) the time period by which it will issue an advance ruling; and
 - (c) the length of time for which the advance ruling is valid.

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5. If a Party revokes, modifies, invalidates or annuls an advance ruling, it shall provide written notice to the applicant setting out the relevant facts and the basis for its decision. If the Party revokes, modifies, invalidates or annuls an advance ruling with retroactive effect, it may only do so if the ruling was based on incomplete, incorrect, false or misleading information.
6. An advance ruling issued by a Party shall be binding on that Party in respect of the applicant that sought it. The advance ruling shall also be binding on the applicant.
7. Each Party shall provide, upon written request from the applicant, a review of the advance ruling or of the decision to amend, revoke or invalidate it.
8. Each Party shall, to the extent practicable, make publicly available information on advance rulings which it considers to be of significant interest to other interested parties, taking into account the need to protect personal and commercially confidential information.
9. Advance rulings, in accordance with the laws and regulations of the issuing Party, shall be issued with regard to:
 - (a) the tariff classification of goods;
 - (b) the origin of goods in accordance with the Parties' commitments under the WTO Trade Facilitation Agreement; and
 - (c) any other relevant matter the Parties may agree upon.

Article 4.15

Fees and charges

The following requirements shall apply in conjunction with the requirements on fees and formalities of Article [.7] of Chapter [X (National Treatment and Market Access for Goods)].

1. The Parties' customs authorities shall not impose fees and charges for the performance of customs controls or any other application of the customs legislation during the official opening hours of their competent customs offices.
2. The Parties' customs authorities may impose fees and charges or recover costs where specific services are rendered, as provided in the Party's legislation and procedures.

Article 4.16

Customs brokers

The Parties agree that their respective customs provisions and procedures shall not require the mandatory use of customs brokers. Each Party shall notify and publish its measures on the use of customs brokers. The Parties shall apply transparent, non-discriminatory and proportionate rules if and when licensing customs brokers.

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Article 4.17

Customs valuation

Each Party shall determine the customs value of goods of the other Party imported into its territory in accordance with Article VII of the GATT 1994 and the Customs Valuation Agreement. To this end, Article VII of the GATT 1994, including its Notes and Supplementary Provisions, and Articles 1 to 17 of the Customs Valuation Agreement, including its Interpretative Notes, are incorporated into and made part of this Agreement, *mutatis mutandis*.

Article 4.18

Pre-shipment inspections

The Parties agree that their respective customs provisions and procedures shall not require the mandatory use of pre-shipment inspections as defined in the WTO Agreement on Pre-shipment Inspection, or any other inspection activity performed at destination, before customs clearance, by private companies.¹

Article 4.19

Review and appeal

1. Each Party shall, in accordance with their laws and regulations, provide effective, prompt, non-discriminatory and easily accessible procedures so that any person to whom customs issues an administrative decision has the right, within its territory, to:
 - (a) an administrative appeal to or review by an administrative authority higher than or independent of the official or office that issued the decision; or
 - (b) a judicial appeal or review of the decision.
2. The legislation of a Party may require that an administrative appeal or review be initiated prior to a judicial appeal or review.
3. Each Party shall ensure that its procedures for appeal or review are carried out in a non-discriminatory manner.
4. Each Party shall ensure that, in a case where the decision on appeal or review pursuant to point (a) of paragraph 1 is not given either:
 - (a) within set periods as specified in its laws or regulations; or
 - (b) without undue delay

¹ This Article is without prejudice to inspections carried out pursuant to provisions and procedures other than customs under the WTO Agreement on Pre-Shipments Inspection.

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the petitioner has the right to further administrative or judicial appeal or review or any other recourse to the judicial authority according to the laws and regulations of the Parties.

5. Each Party shall ensure that the person referred to in paragraph 1 is provided with the reasons for the administrative decision so as to enable such a person to have recourse to procedures for appeal or review where necessary.

Article 4.20

Relations with the business community

1. Each Party shall, to the extent possible and in accordance with its laws and regulations, provide for regular consultation between administrations and the business community on legislative proposals and general procedures related to customs and trade facilitation issues.
2. Each Party shall ensure that their respective customs and related requirements and procedures continue to meet the needs of the trading community, follow best practices, and remain as less trade-restrictive as possible.

Article 4.21

Temporary admission

1. For the purposes of this Chapter, “temporary admission” means the customs procedure under which certain goods (including means of transport) can be brought into a customs territory with conditional relief from the payment of import duties and taxes and without application of import prohibitions or restrictions of economic character. Such goods must be imported for a specific purpose and must be intended for re-exportation within a specified period and without having undergone any change except normal depreciation due to the use made of them, as provided for in its laws and regulations.
2. Each Party shall grant temporary admission, as provided for in paragraph 1, inter alia, to the following goods:
 - (a) goods for display or use at exhibitions, fairs, meetings or similar events;
 - (b) professional equipment;
 - (c) containers, pallets, packings, samples and other goods imported in connection with a commercial operation;
 - (d) goods imported in connection with a manufacturing operation;
 - (e) goods imported for educational, scientific or cultural purposes;
 - (f) travellers' personal effects and goods imported for sports purposes;
 - (g) tourist publicity material;

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- (h) goods imported for humanitarian purposes;
- (i) means of transport; and
- (i) animals imported for specific purposes.

Article 4.22

Committee on Trade in Goods, Customs matters, and Sanitary and Phytosanitary in its Rules of Origin and Origin Procedures, Customs and Trade Facilitation, and Intellectual Property for issues related to border enforcement configuration

1. This Article complements and further specifies Article 24.4 (Specialised Committees)] of Chapter 24 (Institutional Provisions).
2. The Committee on Trade in Goods, Customs matters, and Sanitary and Phytosanitary in its Rules of Origin and Origin Procedures, Customs and Trade Facilitation, and Intellectual Property for issues related to border enforcement configuration (the “Committee” for the purposes of this Article) shall consist of representatives of the customs and other competent authorities of the Parties. The Committee shall ensure the proper functioning of this Chapter, Article 12.61 Border enforcement measures related to intellectual property rights in Section [D of Chapter 12 (Intellectual Property), Chapter 3 (Rules of Origin and Origin Procedures), and the Protocol on Mutual Administrative Assistance in Customs Matters and any additional customs-related provisions agreed between the Parties, and examine all issues arising from their application.
3. The functions of the Committee shall include:
 - (a) monitoring the implementation and administration of this Chapter and of Chapter 3 (Rules of Origin and Origin Procedures);
 - (b) providing a forum to consult and discuss all issues concerning customs, including in particular customs procedures, customs valuation, tariff regimes, customs nomenclature, and also relating to rules of origin and administrative cooperation, providing a forum to consult and discuss issues relating to rules of origin and administrative cooperation; and
 - (d) enhancing cooperation on the development, application and enforcement of customs procedures, mutual administrative assistance in customs matters, rules of origin and administrative cooperation.
4. The Committee may adopt decisions in relation to the areas referred to in point (a) of Article 4.4.2 (Customs Cooperation and Mutual Administrative Assistance), including, where it considers it necessary, for the purposes of implementing points (e) and (f) of paragraph 2 of that Article.